



POLICE DEPARTMENT

April 29, 2026

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In the Matter of the Charges and Specifications :

- against - :

Lieutenant Nikolaos Stefopoulos :

Tax Registry No. 944294 :

PBSI Community Response Team *

Case No.

C-030931

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At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Anne E. Stone
Assistant Deputy Commissioner Trials

APPEARANCES:

For the Department: Joanna Berlin, Esq.
Department Advocate's Office
One Police Plaza, Room 402
New York, NY 10038

For the Respondent: Marissa Gillespie, Esq.
Karasyk & Moschella, LLP
233 Broadway, Suite 2340
New York, NY 10279

To:

HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

CHARGES AND SPECIFICATIONS

1. Said Lieutenant Nikolaos Stefopoulos, while assigned to the Patrol Services Bureau's Community Response Team, on or about February 15, 2024, while on duty, having engaged in a vehicular pursuit commencing at about 0115 hours, wrongfully used improper or excessive force against the operator of the pursued vehicle, [REDACTED] (*As amended*)

P.G. 221-01

FORCE GUIDELINES

2. Said Lieutenant Nikolaos Stefopoulos, while assigned to the Patrol Services Bureau's Community Response Team, on or about February 15, 2024, while on duty, wrongfully failed to activate his body-worn camera immediately after arrival at an incident location, as required. (*As amended*)

P.G. 212-123, Page 1, Paragraph 6

USE OF BODY-WORN
CAMERAS

3. Said Lieutenant Nikolaos Stefopoulos, while assigned to the Patrol Services Bureau's Community Response Team, on or about February 15, 2024, while on duty, having engaged in a vehicular pursuit commencing at about 0115 hours, wrongfully failed to make required Activity Log entries regarding said incident.

P.G. 212-08, Pages 1 & 2, Paragraph 1

ACTIVITY LOGS

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on March 24, 2026.

Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. The Department called Sergeant David Veloz as a witness and entered video footage of the incident into evidence. Respondent testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all of the evidence in this matter, I find Respondent Not Guilty of Specifications 2 and 3, and Guilty of Specification 1. I recommend that Respondent forfeit 20 vacation days.

ANALYSIS

The events underlying Specification 1 in this matter were captured by multiple body-worn cameras, a bystander's cellphone, and surveillance cameras. On February 15, 2024, at approximately 0110 hours, Respondent, Detective Damir Vukosa¹, and Police Officer Jennifer Mariani were driving southbound on the FDR Drive when they engaged in a high-speed pursuit of a Toyota Camry operated by [REDACTED]² ("B.M.") The two vehicles reached speeds in excess of 100 miles per hour before B.M. crashed into a parked car at the corner of Park Place and Church Street. Respondent approached the driver's door of the Toyota with his gun drawn and ordered B.M. to get out. B.M. exited the vehicle with his hands partially in the air. Respondent punched B.M. once, in the upper chest causing him to fall backwards, and then pulled him to the ground. Police Officer Garcia and Detective Vukosa began trying to handcuff him. While they struggled with B.M. on the ground, Respondent kicked him in the head a single time. Respondent's body-worn camera was not activated until after B.M. was on the ground and he did not make an Activity Log entry documenting the incident. (Tr. 33-38, 52-54, 105-10, 113-15, 126-29; Dept. Ex. 1A, *Respondent's body-worn camera*; Dept. Ex. 2A, *Det. Vukosa's body-worn camera footage* at 00:25-01:20; Dept Ex. 4A, *Police Officer Garcia's body-worn camera footage* at 02:14-02:43; Dept. Ex. 5A, *bystander cellphone video*)

The issues before the tribunal are: 1) whether the punch and kick were excessive uses of force; 2) whether Respondent failed to activate his body-worn camera in a timely manner; and 3) whether Respondent was required to complete an Activity Log entry.

¹ At the time of the incident, Detective Damir Vukosa was a police officer who was known by the name Damir Kozarac. He has since legally changed his last name and been promoted.

² [REDACTED] did not appear before the tribunal. He was interviewed by IAB after this incident and the audio recording was entered into evidence by Respondent.

Sergeant David Veloz testified that on the date in question, the Internal Affairs Bureau (“IAB”) received a “call out” regarding a “use of force incident” involving Respondent. He recalled that in addition to a “viral” bystander video that had appeared on social media, he reviewed the body-worn cameras of all of the officers at the scene and NYPD “ARGUS” surveillance footage. Sergeant Veloz detailed that he identified three times when Respondent used force against B.M. on the video footage: the hand strike as B.M. got out of the car, followed by a forcible takedown, and then the kick when B.M. was on the ground. According to Sergeant Veloz, he determined that the takedown was “proper;” however, in his opinion the hand strike and foot strike were “excessive based on the situation.” (Tr. 34-38, 52)

When discussing the hand strike, Sergeant Veloz explained that when B.M. got out of the car, “[h]is hands go from the door frame toward his head, over his head. His palms are forward and we saw this as a position of compliance.” He opined that B.M. was “surrendering” and therefore the punch was unnecessary. With regard to the kick, Sergeant Veloz contended that because B.M. was on the ground laying on his left side, with his right hand pointed towards his head and left hand lower on his body in a “cup position” with two officers attempting to subdue him, this use of force was excessive. He asserted that because B.M. could not freely move his arms, he did not pose a threat at the moment Respondent kicked him. (Tr. 53-54, 78)

Respondent testified that on the date in question he was driving on the FDR drive at around one o’clock in the morning with Detective Vukosa and Police Officer Mariani in an unmarked police vehicle. He recalled that as they approached 59th Street, the Toyota Camry operated by B.M. passed their car “at a high rate of speed.” Respondent described instructing one of the officers to run the license plate while he “proceeded to commence a car stop” by catching

up to the vehicle and engaging the turret lights. He remembered looking at the speedometer at one point and noting that they were traveling at 107 miles per hour. Respondent explained that the Camry exited the FDR and began traveling on local roads in lower Manhattan, still speeding. He described seeing the Toyota turn from Park Place onto Church Street where the car “collided” with a parked car causing it to stop. As a result, the air bags were deployed. (Tr. 105-10)

Respondent recounted getting out of his car and approaching the crashed vehicle with his firearm drawn. He stated that he “double tapped” his body-worn camera to activate it while he gave commands to B.M. to exit the Toyota. Respondent testified that once he was standing beside the car, “I tried to break the driver’s side window with my elbow.” Respondent described seeing that B.M. was “conscious and alert” and that he was moving his hands near his waist. Respondent asserted that as he was trying to retrieve a window breaker from his vest, he saw that B.M. had “leaned back, lifted his hips and went into his waistband.” Respondent alleged that he feared that B.M. was reaching for a weapon. According to Respondent, he reacted by “jump[ing] out of the way” and taking cover near the “B” pillar, which separates the front and back driver’s side doors for “ballistic protection.” Respondent recounted, “when the door fl[ew] up open, I had ceased to give commands at that point, and I noticed B.M. exited the vehicle and sp[un] towards me with his hands coming out towards me.” Respondent recalled that he still had his firearm in his hand, “trained” on B.M., who was now within “arm’s reach.” Respondent continued, “So I made the immediate split-second decision at that point, I wasn’t going to shoot him. I was going to utilize a hand strike.” He detailed, “So I administered one hand strike to his chest, knocking him back into... the doorjamb... [w]hen he fell back, I don’t want him to go back into the car because I don’t want him to be able to retrieve anything. So, I immediately grabbed him by the back of the shirt and pulled him toward the two officers standing behind him.” Respondent

described the punch as “a calculated move to thrust him back towards the car to get him away from me” and maintained that he did not intend to injure B.M. (Tr. 110-13, 122)

Respondent explained that while Detective Vukosa and Police Officer Garcia were struggling with B.M. on the ground, he noticed that his body-worn camera was not activated, so he hit the button “multiple times” until he heard it beep and saw the red light, which indicated it was functioning. Respondent described seeing B.M. “clearly resisting” with his fist balled up, bringing it “down towards his front” and noticed that the officers were “not able to get his hands behind his back.” According to Respondent, he made a decision to assist them “quickly.” He asserted that he chose not to “get down and wrestle with him” because doing so risked compressing B.M.’s diaphragm. Respondent explained that, “[w]hen [B.M.] was leaning forward, I used my foot, the side of my sneaker with literally almost no force to kind of brace him from going forward and tap him in the head.” He testified that, “immediately after I administered that foot strike, I stopped, reassessed, and I noticed that the cops were able to get his hands behind his back. So that was the end of using force.” When asked about the kick, Respondent explained further, “it was like to stop him and kind of ‘hey comply,’ kind of like you know, tap some sense into him, so to speak. But it was more of a compliance kick. It had nothing to do with injuring him. . . .” (Tr. 114-15, 122)

Respondent recounted that he then stepped away to make a radio transmission and heard one of the officers call out, “LT, he’s having a seizure.” He continued, “I put him into the recovery position, and shortly after I heard, ‘he ate heroin.’” Respondent stated that he administered NARCAN to B.M. and made a request to have EMS come to the location. After B.M. was placed into an ambulance, Respondent recalled that B.M. had reached for his waist earlier when he was in the vehicle. He described searching him in the ambulance and that he,

“recover[ed] a large, large quantity of fentanyl and [glassines] and Ziploc bags in a large wad plastic twist from his waistband area.” (Tr. 115-16, 119-20)

During cross-examination, Respondent denied that B.M. had his hands up in a “position of surrender” as he got out of his car and described his arm motions as “aggressive.” Respondent acknowledged that he was the only officer on the scene who used a hand-strike against B.M. When asked about the foot strike, Respondent conceded that he intended to kick B.M. in the head, but maintained that the strike was merely “a tap on the forehead.” (Tr. 155-57, 161)

With regard to the activation of his body-worn camera, Respondent admitted that he did not successfully turn it on when he first approached the crashed vehicle. He maintained that he attempted to do so after exiting his car and referred to the buffer period of his body-worn camera footage. (Dept. Ex. 1A at 00:46) Respondent explained, “so the reason you see that my finger covers the lens is because that’s where the activation is, the circle. That’s when I tap it to activate it. I don’t know why it didn’t turn on. And if you proceed [with] the video to see where I look down and notice it’s not on and it’s not activated. (Tr. 128-29)

Respondent admitted that he did not make an entry in his Activity Log about this incident. He contended that because he was the “operator” of the vehicle and Detective Vukosa was the “recorder,” he should have written “see recorder” in his Activity Log for this incident. Respondent explained that shortly after this incident, he was placed on modified assignment. According to him the failure to make an entry was simply a mistake, “when I was administrative, you don’t have to keep a memo book updated so I just never updated it.” Respondent asserted that despite this oversight, he did document the incident. He testified that on the same day of this occurrence, he “wrote a detailed account in a 49 format to the Chief of Patrol of everything that transpired,” which was entered into evidence as Respondent’s Exhibit E. (Tr. 125-26)

Respondent stands charged with using improper or excessive force in violation of Patrol Guide Procedure 221-01. For clarity, the tribunal will analyze the two alleged uses of force charged in Specification 1 separately.

Patrol Guide Procedure 221-01 states in pertinent part “Force may be used . . . when it is reasonable to place a person in custody . . .” This provision also outlines several considerations to assist in determining whether a particular use of force is reasonable. Some of those considerations include: “the nature and severity of the crime/circumstances;” “actions taken by the subject;” “immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders;” and “whether the subject is attempting to evade arrest by flight.”

The first use of force charged was Respondent’s use of a closed fist to strike B.M. in his upper body as he was getting out of his vehicle. Respondent does not deny punching B.M. However, he contends that, based on the facts and circumstances, in particular his belief that B.M. may have been armed, the use of force was reasonable. I disagree and find that Respondent’s use of a closed fist hand strike constituted an excessive use of force.

Respondent testified in detail that when he approached the driver’s side of the car, he observed that B.M. “leaned back, lifted his hips, and went into his waistband.” (Tr. 112) I credit his testimony that immediately after seeing this Respondent moved away from the window to take cover by the pillar because he believed B.M. was reaching for a weapon. This is corroborated by body-worn camera footage which shows Respondent stepping away from the vehicle after having hit the driver’s window twice with his elbow. (Dept. Ex. 1A at 00:50-00:55; Dept. Ex. 4A at 02:21-02:25) I find that these facts, as well as the high-speed vehicle pursuit that immediately preceded the use of force, were sufficient to raise Respondent’s suspicion that B.M. may have been reaching for a weapon or other dangerous instrument.

However, I am not convinced by Respondent's assertion that he believed B.M. was going to "attack" him or grab his gun as he got out of the car with his hands up. In addition, I find that Respondent's explanation that he punched B.M. in order to create "distance" between them was an attempt to excuse his actions. The video footage confirms Sergeant Veloz's assessment that B.M. exited the vehicle with his hands up in a gesture of surrender and not as an act of "aggression" as described by Respondent. A review of the various videos shows B.M. with his hands above his shoulders and his palms out as he stepped out of his car. The recordings also show that as opposed to "creating distance," Respondent stepped towards B.M. before punching him in the chest and dragging him to the ground. (Dept. Ex. 2A at 00:36-00:39; Dept. Ex. 5A at 00:00-00:03) I find that, under the circumstances, it was not necessary for Respondent to punch B.M. in order to take him to the ground, and that this hand-strike was an excessive use of force.

Respondent stands charged in the same specification with a second use of force, kicking B.M. I find that Respondent's use of a foot strike to B.M.'s head while he was lying on the ground and restrained by two other members of service was also excessive.

Respondent's explanation that he chose to deliver a single kick to B.M.'s head in order to gain compliance and assist the other officers in handcuffing him was a self-serving attempt to justify his misconduct. The body-worn camera footage does show the officers struggling with B.M. Detective Vukosa was holding B.M.'s right wrist as Police Officer Garcia attempted to handcuff B.M. Respondent could have rendered additional assistance by grabbing B.M.'s other wrist or directing additional officers to help. Instead, Respondent stepped away from the group for a moment and then kicked B.M. once in the head before walking away again. Indeed, it took the officers approximately 15 seconds after Respondent kicked B.M. to handcuff him.

The tribunal is mindful that this was a fast-paced situation that started with a high-speed pursuit and involved a suspect who was uncooperative. Although Respondent may have believed B.M. was possibly armed, he is an experienced officer, who was the supervisor on scene, and should have recognized that there were no circumstances present which warranted kicking B.M. in the head. I find that the kick to the head was unreasonable and constituted an excessive use of force.

Based on the foregoing, I find Respondent Guilty of Specification 1.

Specification 2: Body-worn camera

Respondent stands charged with failing to activate his body-worn camera in a timely manner. Patrol Guide 212-123 instructs officers who are operating a vehicle to activate their body-worn cameras “immediately after arrival at incident location, if necessary, to ensure the safe operation of Department vehicle.” I find that the Department Advocate has failed to prove by a preponderance of the evidence that Respondent wrongfully failed to activate his body-worn camera in a timely manner after exiting his vehicle.

Respondent testified that as he got out of his car and started running towards B.M.’s vehicle, he attempted to turn on his body-worn camera. This version of events is corroborated by the body-worn camera footage, which shows Respondent’s hand in front of his camera during the buffer period. (Dept. Ex. 1A at 00:46) The movement is consistent with pushing the button located in the middle of the device. Respondent maintained that he believed that he had successfully activated the camera until after B.M. was on the ground, when he looked down, noticed that it was off and turned it on. This straightforward explanation mirrored what was seen in the body-camera footage, which showed Respondent turning on his camera before the foot strike. Based on the foregoing, I find that Respondent attempted, unsuccessfully, to activate his

camera immediately after he got out of his car. Accordingly, I find Respondent Not Guilty of Specification 2.

Specification 3: Activity Log

Respondent stands charged with failing to make entries in his Activity Log regarding the incident involving B.M. Patrol Guide 212-08 requires all uniformed members of the service below the rank of captain, except members performing permanent administrative or clerical duties, to record their daily activities in the digital activity log application on the Department smartphone.

It is undisputed that Respondent did not have a record of this occurrence in his Activity Log. I credit his assertion that the lack of an entry was an oversight, not an intentional attempt to avoid documenting the incident. Respondent candidly admitted that he was placed on modified assignment after the incident. He explained that he was not making entries in his Activity Log because he was performing administrative duties and therefore did not update it to include documentation of this encounter. In addition, Respondent prepared a detailed memo for the Chief of Patrol on the date this occurred.

The Department Advocate has the burden of proving, by a preponderance of the credible evidence, that Respondent's failure to make activity log entries was more than a mere mistake. I find that they have failed to do so. To sanction civil service employees for misconduct, there must be some showing of fault on the employee's part. (*See Disciplinary Case No. 2022-25362* [Nov. 21, 2023], citing *McGinige v. Town of Greenburgh*, 48 N.Y.2d 949, 951 [1979]; *Reisig v. Kirby*, 62 Misc. 2d 632, 635 [Sup. Ct. Suffolk Co. 1968], *aff'd*, 31 A.D.2d 1008 [2d Dept. 1969] Mere errors of judgment, lacking in willful intent, and not so unreasonable as to be considered negligence, are not a basis for finding misconduct. As to negligent conduct, the

degree of carelessness must be more than *de minimis*, since minor errors do not rise to the level of misconduct. (*See id.*; *see also Disciplinary Case No. C-031167* [Dec. 12, 2025])

In the instant matter, Respondent failed to precisely follow the Patrol Guide. However, he did create a detailed written record of the events, which was submitted to the Chief of Patrol on the day that this took place. Based on the foregoing, I find that his failure to complete the activity log entry was a *de minimis* error that did not rise to the level of sanctionable misconduct.

Accordingly, I find Respondent Not Guilty of Specification 3.

PENALTY

In order to determine an appropriate penalty, this tribunal, guided by the Department's Disciplinary System Penalty Guidelines ("Matrix"), considered all relevant facts and circumstances, including potential aggravating and mitigating factors established in the record. Respondent's employment history also was examined. *See* 38 RCNY § 15-07. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached memorandum.

Respondent, who was appointed to the Department on July 9, 2007 and has no formal disciplinary history, has been found guilty of wrongfully using excessive force against B.M. by punching him in the chest and then kicking him in the head as he was being restrained on the ground by two other officers.

With regard to the use of non-deadly force resulting in no injury, the Matrix provides for a mitigated penalty of five (5) days; a presumptive penalty of ten (10) days; and an aggravated penalty up to and including termination. (Matrix at p. 23) During summation, the Department Advocate asked for a total forfeiture of twenty (20) vacation days— the mitigated penalty for the hand strike and an aggravated penalty of fifteen (15) days for the kick because it was

“irresponsible and dangerous.” (Tr. 199) For the reasons set forth below, I agree that an aggravated penalty is appropriate.

In the instant matter, Respondent had just engaged in a high-speed pursuit. However, Respondent’s uses of force, the punch and the subsequent kick, served no legitimate purpose. When B.M. got out of his car, he had his hands in the air, in an apparent sign of surrender. Respondent reacted by stepping forward and punching him in the chest. At the time of the kick, B.M. was on the ground being restrained by two officers and did not have free use of his arms. The danger posed by B.M. was minimal, and the kick delivered to his head by Respondent appears to have been motivated by frustration. Even if Respondent’s intention was to gain compliance, under these circumstances, kicking the head of a prone individual was excessive and unnecessarily risked causing B.M. serious injury.

NYPD officers have an obligation to safeguard individuals who are in their custody. When considering the appropriate penalty for this misconduct, I find that Respondent’s reckless disregard for the well-being of B.M., by kicking him in the head while he was on the ground constitutes an aggravating factor. On balance, the forfeiture of twenty vacation days adequately addresses the gratuitous nature of Respondent’s actions.

For the foregoing reasons I recommend that Respondent forfeit a total of twenty (20) vacation days.

APPROVED

AUG 07 2025
Jessie Tisch
JESSICA S. TISCH
POLICE COMMISSIONER

Respectfully submitted,

Anne E. Stone

Anne E. Stone

Assistant Deputy Commissioner Trials



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials

To: Police Commissioner

Subject: SUMMARY OF EMPLOYMENT RECORD
LIEUTENANT NIKOLAOS STEFOPOULOS
TAX REGISTRY NO. 944294
DISCIPLINARY CASE NO. C-030931

Respondent was appointed to the Department on July 9, 2007. On his most recent annual performance evaluations, he received 5.0 ratings of “Extremely Competent” for 2021 and 2023. He has been awarded seven Commendations, one Commendation- Community Service, 60 medals for Meritorious Police Duty, and 58 medals for Excellent Police Duty.

Respondent has no formal disciplinary history. He was placed on Level 1 Discipline monitoring in April 2024; monitoring remains ongoing.

For your consideration.

Anne E. Stone
Assistant Deputy Commissioner Trials